

The Indian Nursing Council Regulations

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The Indian Nursing Council Regulations

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India

The Indian Nursing Council Regulations

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The Indian Nursing Council Regulations

1806.

In exercise of the powers conferred by sub-Section (1) of Section 16 of the Indian Nursing Council Act, 1947 (48 of 1947

), as amended from time to time, the Indian Nursing Council has made the following regulations :-

1.

These Regulations may be called the Indian Nursing Council Regulations.

2.

In these Regulations :

(1)

'The Act' means the Indian Nursing Council Act, 1947 (

48 of 1947

) as amended from time to time;

(2)

'The Council' means the Indian Nursing Council constituted under the Act;

(3)

'Executive Committee' means the Executive Committee constituted under sub-Sections (1) and (2) of Section 9 of the Act.

(4)

'President' means the President of the Council elected under Section 3 (2) of the Act;

(5)

'Vice-President' means the Vice-President of the Council elected under Section 8(2)(a) of the Act;

(6)

'Inspector' means the Inspectors appointed under section 13(1) of the Act;

(7)

'Secretary' means the Secretary appointed under sub-section (1) or (2) (c) of Section 8 of the Act;

(8)

'Treasurer' means the Treasurer appointed by the Council under sub-Section (1) or (2)(c) of Section 8 of the Act;

(9)

'Ministerial staff' means the superintendent, assistants, accountants, clerks, stenographers and typists appointed under Section 8(2)(d) of the Act;

(10)

Technical staff means the staff other than the Ministerial staff and class IV staff;

(11)

'Class IV Staff', means daftries, jamadars, peons, chowkidars and sweepers appointed under Section 8(2)(d) of the Act.

3.

The office of the Council shall be situated in Delhi.

Part I ? .- Time and place of, and preparation of business for meetings of the council

4.

(1)

Meetings of the Council shall ordinarily be held at Delhi or at any other place on such dates as may be fixed by the Council provided that the President :

(a)

may call a special meeting at any time on 15 days' notice to deal with any urgent matter requiring the attention of the Council.

(b)

shall call a special meeting on 15 days' notice, if he receives a requisition in writing signed by not less than ten members and stating the purpose other than that mentioned in the first proviso to Regulation No. 8(1)(b) and being a purpose within the scope of the council's functions for which they desire the meeting to be called.

(2)

The first meeting of the Council other than a special meeting referred to in the proviso to Regulation No. 4(1), held in any financial year shall be the annual meeting of the Council for that year.

5.

At meetings referred to in the proviso to Regulations No. 4(1) only the subjects or subjects for the consideration of which the meeting has been called shall be discussed.

6.

Notice of every meeting other than a special meeting called under the proviso to Regulation No. 4(1) or under the first proviso to Regulation No. 8(1)(b) shall be dispatched by the Secretary to each member of the Council not less than 40 days before the date of the meeting.

7.

(1)

The Secretary shall issue, with the notice of the meeting, a preliminary agenda paper showing the business to be

brought before the meeting, the terms of all motions to be moved of which notice in writing has previously reached him/her and the names of the movers.

(2)

A member, who wishes to move any motion not included in the preliminary agenda paper or an amendment to any item so included, shall give notice thereof to the Secretary not less than 25 clear days before the date fixed for the meeting.

(3)

The Secretary shall, not less than 15 clear days before the date fixed for the meeting, that is, in the case of a special meeting with the notice of the meeting, issue a complete agenda paper showing the business to be brought before the meeting.

(4)

A member who wishes to move an amendment to any item included in the complete agenda paper, but not included in the preliminary agenda paper shall give notice thereof to the Secretary not less than three clear days before the date fixed for the meeting.

(5)

The Secretary shall, if time permits, cause a list of all amendments of which notice has been given under clause (iv), to be made available for the use of every member;

Provided that the President may, if the Council agrees, allow a motion to be discussed at a meeting notwithstanding the fact that notice was received too late to admit of compliance with this Regulation :

Provided also that nothing in this regulation shall operate to prevent the reference by the Executive Committee of any matter to the council at a meeting following immediately or soon after the meeting of the Executive Committee to permit of the notice required under this Regulation.

8.

(1)

A motion shall not be admissible :

(a)

If the matter to which it relates is not within the scope of the Council's functions;

(b)

if it raises substantially the same question as a motion or amendment which has been moved or withdrawn with the leave of the Council within one year of the date of the meeting at which it is designed to be moved;

Provided that such a motion may be admitted as a special meeting of the Council convened for the purpose on the requisition of not less than two thirds of the members of the Council;

Provided further that nothing in these Regulations shall operate to prohibit the further discussion of any matter referred to the Council by the Central Government in the exercise of any of their functions under the Act;

(c)

unless it is clearly and precisely expressed and raises substantially one definite issue;

(d)

if it contains arguments, inferences, ironical expressions or defamatory statements.

(2)

The President shall disallow any motion which, in his opinion, is inadmissible under sub-regulation (1) :

Provided that if a motion can be rendered admissible by amendment the President may in lieu of disallowing the motion admit it in an amended form.

(3)

When the President disallows or amends a motion the Secretary shall inform the member who gave notice of the motion of the order of :disallowance or, as the case may be, of the form in which the motion has been admitted.

Part II

Conduct of business at meetings of the Council

9.

(1)

Every meeting of the Council shall be presided over by the President, or if he is absent, by the Vice-President, or, if both the President and the Vice-President are absent, by a Chairman to be elected by the members present, from among themselves.

(2)

All references in this Part to the President shall be read as referring to the person, for the time being, presiding over a meeting.

(3)

Fifteen members of the Council shall form a quorum.

10.

If, at the time appointed for a meeting, a quorum is not present, the meeting shall not commence until a quorum is present, and if a quorum is not present, on the expiration of 20 minutes from the time appointed for the meeting or during the course of any meeting, the meeting shall stand adjourned to such future time and date as the President may appoint.

11.

(1)

Every matter to be determined by the Council shall be determined on a motion moved by a member and put to the Council by the President.

(2)

Votes shall be taken by show of hands or by division or by ballot, as the President may direct;

Provided that votes shall be taken by ballot if three members so desire and ask for it:

Provided further that if voting has been by a show of a hands a division shall be taken if a member asks for it.

(3)

The President shall determine the method of taking votes by division.

(4)

The result of the vote shall be announced by the President and shall not be challenged.

(5)

In the event of an equality of votes the President shall have a second or a casting vote.

12.

When motions identical in purport stand in the names of two or more members the President shall decide whose motion shall be moved and the other motion or motions shall thereupon be deemed to be withdrawn.

13.

(1)

Every motion or amendment shall be seconded and if not seconded shall be deemed to have been withdrawn.

(2)

When a motion has been seconded, it shall be stated from the Chair.

(3)

When a motion has been thus stated, it may be discussed as a question to be resolved either in the affirmative or in the negative or any member may, subject to Regulations 14 and 15, move an amendment to the motion;

Provided that President shall not allow an amendment to be moved which if it had been a substantive motion would have been inadmissible under Regulation 5.

14.

(1)

an amendment must be relevant to an within the scope of the motion to which it is proposed.

(2)

An amendment may not be moved which has merely the effect of a negative vote.

(3)

The President may refuse to put an amendment which is in his opinion frivolous.

15.

A motion may be amended by :

(1)

The omission, insertion or addition of words; or

(2)

The substitution of words for any of the original words.

16.

(1)

When a motion or amendment is under debate no proposal with reference thereto shall be made other than :

(a)

an amendment of the motion or of the amendment as the case may be, as proposed in Regulation 13 :

(b)

a motion for the adjournment of the debate on the motion or amendment either to a specified date and hour or sine die;

(c)

a motion for the closure, namely a motion that the question be now put;

(d)

a motion that the Council instead of proceeding to deal with the motion do pass to the next item on the programmed of business.

Provided that no such motion or amendment shall be moved so as to interrupt a speech :

Provided that also no motion of the nature referred to in clauses (b), (c) and (d) shall be, moved or seconded by a member who has already spoken to the question then before the meeting :

Provided further that a motion referred to in clauses (c) and (d) above shall be moved without a speech.

(2)

It shall be in the discretion of the President to put or refuse to put to the Council a proposal of the nature referred to in clause (b) of sub regulation No. (1).

(3)

Unless the President is of opinion that a motion for closure is an abuse of the right of reasonable debate, he shall forthwith put a motion that the question be now put and if that motion is carried the substantive motion or amendment under debate shall be put forthwith :

Provided that the President may allow the mover of the substantive motion to exercise his right of reply before the substantive motion under debate is put.

17.

Provided that it shall not interrupt a speech, a proposal to adjourn the Council to a specified date and hour may be made at any time, but it shall be in the discretion of the President to put or refuse to put such a proposal to the Council.

18.

A motion or an amendment which has been moved and seconded shall not be withdrawn save with the leave of the Council which shall not be deemed to be granted. if any member dissents from the granting of leave.

19.

When a motion has been moved and seconded, members other than the mover and the seconded may speak on the motion in such order as the President may direct;

Provided that the seconded of a motion or of an amendment may with the permission of the President, confine himself/herself to seconding the motion or amendment as the case may be and speak thereon at any subsequent stage of the debate.

20.

During the meeting, the President may, at any time, make any objections or suggestions or give information to elucidate any point to help the members in the discussion.

21.

(1)

The mover of an original motion, and if permitted by the President, the mover of any amendment, shall be entitled to a right of final reply; no other member shall speak more than once to any debate except, with the permission of the President, for the purpose of making a personal explanation or of putting a question to the member then addressing the Council;

Provided that any member at any stage of the debate may rise to a point of order, but no speech shall be allowed on that point;

Provided further that a member who has spoken on a motion may speak again on an amendment subsequently moved to the motion.

(2)

No member shall, save with the permission of the President, speak for more than five minutes :

Provided that the mover of a motion when moving the same, may speak for ten minutes.

(3)

A speech shall be strictly confined to the subject matter of the motion or amendment on which it is made.

(4)

Any motion or amendment standing in the name of a member who is absent from the meeting or unwilling to move it may be brought forward by another member with the permission of the President.

22.

(1)

A member desiring to make any observations on the matter before the Council shall speak from his/her place, shall rise when he/she speaks, and shall address the President.

(2)

If at any time the President rises, any member speaking shall immediately resume his/her seat.

23.

No member shall be heard except upon the business before the Council.

24.

(1)

When an amendment to any motion is moved and seconded or when two or more such amendments are moved and seconded the President shall, before taking the sense of the Council thereon, state or read to the Council the terms of the original motion and of the amendment or amendments proposed.

(2)

An amendment to a motion shall be put to the vote first.

(3)

If there be more than one amendment to a motion the President shall decide in what order they shall be taken.

25.

When any motion involving several points has been discussed it shall be in the discretion of the President to divide the motion, and put each or any point separately to the vote as he may think fit.

26.

(1)

The President may, at any time, adjourn any meeting to any future day or to any hour of the same day.

(2)

Whenever a meeting is adjourned to a future day, the Secretary shall, if possible, send notice of the adjournment to every member who was not present at such meeting.

(3)

When a meeting has been adjourned to a future day the President may change such day to any other day and the Secretary shall send written notice of the change to each member.

(4)

At a meeting adjourned to a future day any motion standing over from the previous day shall, unless the President otherwise directs, take precedence of other matter on the agenda.

(5)

Either at the beginning of the meeting or after the conclusion of the debate on a particular item during the meeting, the President or a member may suggest a change in the order of business on the agenda; if the Council agrees such a change shall take place.

(6)

No matter which had not been on the agenda of the original meeting shall be discussed at an adjourned meeting.

(7)

The same quorum shall be necessary for an adjourned meeting as for an ordinary meeting.

27.

(1)

The President shall decide all points of order which may arise, and his decision shall be final.

(2)

If any question arises with reference to procedure in respect of a matter for which these regulations make no provision,

the President shall decide the same and his decision shall be final.

28.

Four representatives of the Press at the discretion of the President and other visitors, not exceeding four at a time, may be admitted to the meetings on production of permits from the Secretary. The Press representatives shall be required to obtain the previous approval of the Secretary to the publication of their report of the proceedings. The President at any time may hold the meetings in camera in which case all visitors will be required to withdraw.

Part III

Minutes of the Council

29.

The proceedings of the meetings of the Council shall be preserved in the form of printed or cyclostyled minutes which shall be authenticated, after confirmation, by the signature of the President.

30.

A copy of the minutes of each meeting shall be submitted to the President within ten days of the meeting and attested by him and they shall then be sent to each member within 30 days of the meeting.

31.

The minutes of each meeting shall contain such motions and amendments as have been moved and adopted, or negative, with the names of the mover and the seconded, but without any comment and without any record of observations made by any member at the meeting.

32.

If any objection regarding the correctness of the minutes is received within 30 days of the dispatch of the minutes by the Secretary, such objection together with the minutes as recorded and attested shall be put before the next meeting of the Council for confirmation. At this meeting no question shall be raised except as to the correctness of the records of the meeting; Provided that if no objection regarding a decision taken by the Council at a meeting is received within 30 days of the despatch by the Secretary of the minutes of that particular meeting such decision may, if expedient, be put into effect before the confirmation of the minutes at the next meeting :

Provided further that the President may direct that action be taken on a decision of the Council before the expiry of the period of 30 days mentioned above.

33.

The minutes of the Council shall, as soon as is practicable after their confirmation, be made up in sheets and consecutively paged for insertion in a volume which shall be permanently preserved. A copy of such volumes shall be supplied free to each member of the Council.

Part IV

Election of Members of the Council

34.

Elections under clauses (b) and (c) of sub-sec. (1) of Section 3 of the Act, shall be conducted in accordance with the following regulations prescribed under Section 5 (2) of the Act :-

(1)

The Secretary shall be the Returning Officer for the purpose of elections under clauses (b) and (c) of Sub-Section (1) of Section 3 of the Act.

(2)

The Secretary shall, by registered post, inform each voter referred to in clauses (b) and (c) of sub-sec. (1) of Section 3 of the Indian Nursing Council act, of the election to be made by him/her and give him/her a period of not less than 15 days to intimate in a sealed cover marked "Secret" the name and designation of the person's he/she desires to elect. The person(s) who are elected by the largest number of voters shall be declared to have been elected as member's of the Council.

(3)

The elections shall be conducted by "Secret Ballot." Envelopes containing ballot papers shall be opened by the Secretary personally after the last date for obtaining the votes.

(4)

A person elected under these regulations shall cease to be a member of the Council automatically if he/she has ceased to be the head of an institution referred to in clauses (b) and (c) of sub-Section (1) of Section 3 of the Act.

Part V

Resignation and filling of casual vacancies

35.

a member desiring to resign his/her seat on the Council shall send his/her resignation in writing to the President or Secretary and his/her resignation shall take effect from the date specified by him/her on this behalf or from the date receipt of his/her letter by the President or Secretary whichever is later.

36.

When a casual vacancy occurs by reason of the death, resignation of a member, a report shall be made forthwith by the President to the Central Government who shall take steps to have the vacancy filled by nomination or election as the case may be, by the authority or constituency by which the member whose death or resignation has caused the vacancy was nominated or elected.

Part VI

Tenure of office and powers and duties of the President and Vice-President

President

37.

The President shall hold office for such periods as provided for in the Act. He shall exercise in respect of the office of the Council such powers as are exercised by a "Head of Department" under the Government of India and perform such duties as are contained in the provisions of the Act, the Regulations and Standing Orders of the Council. He shall do such acts as he considers necessary in the furtherance of the objects for which the Council is established.

Vice-President

38.

The vice-President shall hold office for two years or until the date of election of his/her successor whichever is longer. He/She shall be eligible for re-election. If the office of the President is vacant or if the President for any reason is unable to exercise the powers or perform the duties of the office, the Vice-President will act in his place and shall exercise the powers and perform the duties of the President.

Part VII

Executive Committee

39.

The seven members of the Executive Committee elected by the Council under Section 9(1) of the Act shall be elected by all the members of the Council present voting together.

40.

The President and the Vice-President of the Council shall be members ex-officio of the Executive Committee and shall be President and Vice-President respectively of that Committee.

41.

The Executive Committee shall exercise such powers as are beyond the scope of the President and the Secretary.

42.

The meetings of the Executive Committee shall be generally governed by the Regulations applicable to the meeting of the Council.

43.

If at the time appointed for a meeting a quorum is not present the meeting shall not commence until a quorum is present, and if a quorum is not present on the expiration of 30 minutes from the time appointed for the meeting or during the course of any meeting, the meeting shall stand adjourned to such future date and time as the President may appoint.

44.

If both the President and the Vice-President are absent, the members present shall elect one of their members to act as Chairman.

45.

Five members of the Executive Committee shall form a quorum and at an adjourned meeting no quorum shall be necessary.

46.

The term of office of an elected member of the Executive Committee shall be two years or until the appointment of the new member, whichever is longer. A member shall be eligible for re-election.

47.

In case of a vacancy which may occur during a recess the Executive Committee may co-opt a member of the Council to fill the vacancy until the next meeting of the Council which shall elect one of its members to be a member of the Executive Committee.

48.

The Executive Committee may invite a member of the Council, not being a member of the Executive Committee, to attend any meeting of the Executive Committee. Any member so invited shall be free to participate in the discussion in the Executive Committee but shall not function as a member of the committee, whether by way of voting or otherwise.

49.

(1)

Within one month before the meeting of the Council the Executive Committee shall ordinarily meet and also at such other times and places as the President may determine.

(2)

Notice of such meetings of the Executive Committee shall ordinarily be given and agenda sent to members 20 days before the meeting.

50.

The Executive Committee shall take into consideration the reports on the courses of study and examinations submitted by inspectors appointed for the purpose and shall thereupon prepare a report for submission to the Council.

51.

The Executive Committee shall consider and report on any subjects referred to it by the Councillor by the President and may with the sanction of the President direct the printing and circulation of such reports among members of the Council.

52.

A copy of the minutes of each meeting shall be submitted to the President within 15 days of the meeting, and after having been attested by him shall be sent to each member within 20 days of the meeting. If no objection to their correctness is received within 15 days of their dispatch, any decision therein shall be given effect to. The minutes shall be sent to the members of the Council after confirmation by the Executive Committee.

Provided that the President may direct that action be taken on a decision of the Executive Committee before the expiry of the period 15 days mentioned above.

Part VIII

Committees

53.

The Council may, at any time, on the adoption of a motion to this effect, appoint a committee consisting of any number of its members or resolve itself into a committee for the consideration of any business.

54.

(1)

A member may at any time, without notice, move that a committee of the Council be appointed or that the Council do resolve itself into a committee.

(2)

A motion for the appointment of a committee shall define the functions of the committee and the number of members to be appointed.

(3)

Any member may, without notice, move an amendment to such a motion proposing that the functions of the number of members of the committee be enlarged or reduced.

(4)

If a motion for the appointment of a committee is adopted the mover shall name the members to be appointed as members of the committee and any member may then move amendments proposing the addition of other names.

(5)

If the number of members proposed as members of the committee does not exceed the total number of members to form the committee, the members so proposed shall be appointed as members of the committee. If the number of members so proposed exceeds the total number of members to form the committee, ballot shall be held and the requisite number of members who obtain the largest number of votes shall be appointed.

55.

(1)

The quorum for a committee of the whole Council shall be the same as that provided for meetings of the Council.

(2)

The quorum for a committee appointed by the Council shall be determined at the time of the appointment of the committee and shall not be less than a majority of the members appointed.

56.

(1)

(a)

The Chairman of a committee of the whole Council shall be the same as for a meeting of the council.

(b)

The Chairman of a committee appointed by the Council shall be appointed by the Council at the time of the appointment of the Committee.

(2)

The proceedings of the committee shall be conducted in accordance with the regulations contained in this part, provided that such regulations may at any time be relaxed at the direction of the Chairman.

57.

(1)

A resolution passed by a committee appointed by the whole Council shall be embodied in a report prepared by the Secretary and signed by the President, and shall have no effect unless confirmed by the Council at a meeting.

(2)

A resolution passed by a committee appointed by the Council shall be embodied in a report prepared by the Secretary or by the Chairman at the latter's discretion, and, when signed by the members of the committee, shall with any notes of dissent, be presented to the Council at its next meeting subject to the provisions of the regulations regarding notice.

Part IX

Tenure of office and powers and duties of Secretary and other officers and servants of the Council

Secretary

58.

The term of office of the Secretary shall be fixed by the Council at the time of appointment. He/She shall normally retire on attaining the age of 60 years unless otherwise determined by the Council.

59.

He/She shall exercise in respect of the office of the Council, such powers as are exercised by the "Head of Office" under the Government of India and perform such duties as have been given in the Act and the regulations. He/She shall also be responsible for the safety of the property of the Council and the control and management of the office, accounts and correspondence, and shall see that the office staff attend punctually, and generally fulfill all such duties as may be required of him/her by the Council for the purposes of the Act. He/She shall attend and take notes of the proceedings of meetings of the Council and Executive Committee and any sub-committee.

60.

The Secretary shall not less than 90 days before the expiration of the term of any existing appointment, draw the attention of the President to the approaching vacancy, and the latter shall forthwith report it to the Council in order that a new appointment may be made to take effect from the day on which the existing appointment will expire.

Staff

61.

A member of the ministerial and class IV staff shall be required to retire on attaining the age of 55 years :

Provided that the Executive Committee may at their discretion extend the tenure of a member of the ministerial or class IV staff.

62.

The powers and duties of the staff will be such may be laid down from time to time in the Standing Orders as framed for the purpose by the Council.

Part X

Inspection of Examination and Training Institutions

63.

The inspection of examinations under Section 13 (1) of the Indian Nursing Council Act shall be carried out in accordance with the following regulations :--

(1)

The Executive Committee of the Council shall appoint not less than two inspectors, whether from among members of the Council or otherwise to attend at qualifying and other examinations and to inspect Training Institutions.

(2)

An inspector shall have taught previously students in one or other of the subjects of the final examination or in cognate subjects for five years and shall have acted as examiner in such subjects.

(3)

The term of office of an inspector shall be fixed by the Executive Committee at the time of his/her appointment.

(4)

An inspector shall on receipt of a formal Commission in writing from the President under the Seal of the Council, attend and examinations held for the purpose of granting any recognized qualification or recognized higher qualification, and inspect such recognized training institutions, as the President or the Executive Committee may direct, and thereafter shall report to the Executive Committee on the sufficiency of the examination, or on the suitability of the institutions for the purposes of training and on the adequacy of the training therein.

(5)

It shall be the duty of the inspector :-

(a)

To make himself/herself acquainted with previous reports on the inspection of the qualifying examination or examinations and institutions which he/she is appointed to inspect and with the report of the Executive Committee of the Council thereon. He/She shall be provided by the Secretary with a copy of these documents and of the recommendations of the Council in regard to examinations, and of the resolutions with regard to nursing education.

(b)

To attend personally every examination which he/she is required to inspect, but not to interfere with the conduct thereof.

(c)

To report to the Executive' Committee his/her opinion as to the sufficiency of each examination and the suitability of each institution inspected by him/her.

(d)

To report relevant particulars about the questions asked in the written, oral and practical parts of each examination inspected by him/her, the equipment provided for clinical and practical examinations, the arrangements made for invigilation, the method and scales of marking the standard of knowledge shown by successful candidates, and generally all such details as may be required for adjudicating on the scope and character of the examination.

(e)

To report on the adequacy of the teaching programme in the institutions inspected with particular reference to class and demonstration rooms, teaching equipment, number of nursing tutors, facilities for practical experience in the hospital and public health field. Supervision of practical work during day and night, hours of duty, arrangements for living and recreation and the students health service.

(f)

To report, in the form of a brief diary, a record of the days and hours when he/she was present at the institution and during the course of the examination inspected, and of the parts of each examination in progress on each day.

(g)

To report on the extent to which the recommendations of the Council have been carried out in the case of each examination and institution inspected by him/her and also to what extent the resolutions of the Council on nursing education have been given effect to in the education of the students.

(6)

Every report of an inspector shall be cyclostyled and referred to the Executive Committee of the Council for consideration and report to the Council. A copy shall be supplied to each member of the Executive Committee.

(7)

The report of the inspectors shall be deemed confidential unless in any particular case the Council shall direct otherwise.

(8)

A copy of the report made by an inspector marked "Confidential", shall be forwarded to the institution concerned with a request that the institution will furnish to the Council, with at little delay as possible, such observations thereon as it may think necessary.

(9)

A confidential copy of every report of an inspector with the observations of the institution thereon shall be supplied to each member of the Council and shall be considered together with the report of the Executive Committee thereon by the Council at their next meeting.

(10)

A copy of every report by an inspector, with the observations of the institution concerned, and the opinion of the Executive Committee thereon, shall be forwarded to the Central Government.

(11)

No inspector shall take part in the inspection of any examinations in the University or Nursing School or College or of any training institution in which he/she is a teacher or examiner.

(12)

An inspector may accept ordinary hospitality but may not accept hospitality of house and board, from examiners or any officials of the University or Nursing School or College or institutions in which he/she is conducting an inspection.

(13)

It shall be the duty of the Secretary to ascertain periodically from the examining bodies the date and place of every examination which may be inspected by the Council.

Part XI

Finance and Accounts

64.

The Council is authorized to receive for the purpose of its expenses, benefactions and contributions from private persons and bodies, and the proceeds of the sale of report and other publications.

65.

The bankers of the Council shall be the State Bank of India. All funds of the Council shall be paid into the Council's account with the State Bank of India, New Delhi, and shall be withdrawn by means of cheques signed by the Secretary. The cheque books shall remain in the personal custody of the Secretary.

66.

The funds of the Council, surplus to current requirements, may, on a recommendation by the Treasurer and with the sanction of the Executive Committee, be invested in the following manner :--

(1)

in promissory notes, stock or other securities of any State' Government or of the Government of India:

(2)

in stock or other debentures of, or shares in, railway or other companies the interest whereon shall have been guaranteed by the Government of India.

(3)

in debentures or other securities for money issued, under the authority of an Act of a Legislature established in the Republic of India, by or on behalf of any Municipal Body, Port Trust or City Improvement Trust in any town;

(4)

in fixed deposits with the State Bank of India.

67.

An investment of the funds of the Council shall be made in the name of the Council. The safe custody receipts shall remain in the personal charge of the Secretary and shall be verified once in six months with the register of securities maintained under Regulation 75 and a certificate of verification shall be recorded by the Secretary on the register and countersigned by the President.

68.

The Treasurer, in consultation with the Secretary, shall prepare detailed estimates of the receipts and expenditure for the next financial year, and shall submit the same for the sanction of the Executive Committee at a meeting to be held for the purpose before the 1st November every year. One copy of the finally sanctioned estimates shall be supplied by

the 1st of November to the Secretary, to the Government of India, Ministry of Health.

69.

The funds of the Council shall not be appropriated for expenditure on any item which has not been duly sanctioned by the Council or by the President or Secretary, as the case may be.

70.

The primary units of appropriation shall be "pay of officers", "pay of establishment", "allowances and honoraria", "contingencies" and "leave and pension or provident fund contribution".

71.

The President shall have power to reappropriate funds from one unit of appropriation to another within the total sanctioned estimates. Copies of orders sanctioning such reappropriation shall be communicated to the Executive Committee.

72.

The Secretary shall have power to sanction expenditure of miscellaneous and contingent nature up to an amount not exceeding Rs. 200 in each case. Expenditure in excess of this amount shall require the sanction of the President. In all other cases the secretary and the President shall exercise financial powers analogous to those delegated by the Government of India to "Head of Office", and "Head of Department" respectively. The powers beyond the scope of the Secretary and the President shall be exercised by the Executive Committee.

73.

A permanent advance offers Rs. 100 shall be made to the Secretary.

74.

The Secretary shall be the certifying officer for traveling, halting and other allowances to members, inspectors and other employees of the Council and the President for those of the Secretary.

75.

The following account registers of the Council shall be maintained :-

(1)

The Cash Book.

(2)

The Classified Abstract.

(3)

The Register of Securities.

(4)

The Register of Stock and Furniture.

(5)

The Register of Stock of Cheque Books.

(6)

The Register of Leave and Pension Contributions.

(7)

The Register of Permanent Advances.

(8)

Annual Accounts.

76.

Monthly accounts shall be compiled in the Classified Abstract according to the primary units of appropriation, suitable secondary units may be opened at the discretion of the Secretary who shall be responsible for the due preparation and maintenance of all accounts.

77.

The audit of accounts of the Indian Nursing Council shall be conducted by the Comptroller and Auditor General of India or by any other person appointed by him in this behalf. The auditor shall be paid audit charges, as may be decided from time to time, from the funds of the Council. All books, accounts, vouchers and other necessary documents and papers shall, on demand, be produced to the auditor. The audit report shall be submitted by the auditor to the President of Indian Nursing Council and a copy thereof to the Government of India, Ministry of Health. A copy of the audit report shall be submitted to the Executive Committee who will communicate it to the members of the Council.

Part XII

Sales of Publications

78.

(1)

Whether a publication shall be priced or not shall be determined by the Secretary.

(2)

The price of a publication shall be calculated as under :-

(a)

The Secretary shall declare the number of complimentary copies required for distribution free of cost.

(b)

The number of complimentary copies shall be deducted out of the total number of copies printed and total cost of printing divided by the remaining number of copies.

(c)

The price thus calculated shall be rounded off to the next higher digit divisible by five.

(3)

Action taken by the Secretary to fix the price of publication shall be reported to a subsequent meeting of the Council.

(4)

The publications shall be sent to the indenters by v.p.p., registered post, book post, etc. as considered desirable by the Secretary in each case.

(5)

The expenditure on postage, except in the case of complimentary copies shall be recovered from the indenter.

(6)

All copies in stock of a publication which is amended or revised and reprinted or becomes obsolete, shall be disposed off as desired by the Secretary and their value written off.

(7)

The cost of all copies of publications in stock which are damaged or lost for any reason without any fault on the part of any employee of the Council shall be written off by the orders of the President.

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